▼ VIEWPOINT

GUILTY UNTIL PROVEN INNOCENT?

Preventive detention under the National Security Act gives the executive a troubling leeway to decide what conduct invites detention



BY PROF. SRIKRISHNA DEVA RAO and SUNISHTH GOYAL

As educators, we are perpetually advised that our theoretical and somewhat traditional orientation must incorporate novel and innovative pedagogical interventions. Sonam Wangchuk is a shining example of a real-life educational innovator. He has also been a vocal political activist and late last month he was detained under the National Security Act (NSA), 1980. There certainly might be differences of opinion as to Wangchuk's alleged activities as well as the demand for extending the Sixth Schedule to Ladakh. But no one can deny that frequent invocation of the NSA and preventive detention is a matter of serious concern.

Unlike ordinary criminal proceedings that follow the principle of *nulla poena sine lege* (no punishment without law), preventive detention allows authorities to curtail individual liberty based on anticipated future conduct rather than allegations of past criminal activity. It represents one of the most contentious aspects of Indian criminal law and has been repeatedly characterised as a "draconian measure" by the Supreme Court.

Under the regular criminal process, an arrest is usually predicated upon investigation pursuant to lodging an FIR upon the alleged commission of a crime. Such arrests are subject to constitutional fundamental rights such as Articles 20 and 21. Articles 22(1) and 22(2), which are considered cornerstones of criminal procedure protections, also apply, wherein every arrested person must be produced before a magistrate in 24 hours, they must be informed of their grounds for arrest, and allowed to consult a legal counsel. Under any preventive detention legislation such as the NSA, these abovementioned Article 22 rights would be inapplicable courtesy of Article 22(3).



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EDUCATOR-ACTIVIST SONAM WANGCHUK'S DETENTION RAISES QUESTIONS ABOUT THE FAIR USE OF THE NATIONAL SECURITY ACT

The definitions deployed under the NSA are sufficiently vague so as to include almost any conduct under its ambit. For instance, a person could be detained to prevent him from acting in any manner prejudicial to "the security of the State" or for "maintenance of public order" or "maintenance of supplies and services essential to the community". Since specific grounds of arrest are not provided, the executive has a monopoly on which conduct could be seen as prejudicial. In June 2025 in *Aniket v. Union of India*, the Supreme Court ordered the immediate release of 24-year-old law student Aniket, detained under the NSA in Madhya Pradesh for nearly a year. He had protested the inappropriate behaviour of a professor towards a female student from the Scheduled Caste. He allegedly assaulted the professor and surrendered to the police upon registration of an FIR. The district authorities invoked preventive detention under the NSA against him for disrupting law and order. The Supreme Court declared that "wholly untenable" and emphasised that preventive detention cannot be invoked for breaches of ordinary 'law and order' and must be reserved for genuine threats to public order.

These are not novel arguments in 2025. In the Emergency era, preventive detention laws were abused in a number of cases, further jeopardising civil liberties and fundamental rights. To address such excesses, the Janata Government in 1978 brought the 44th amendment of the Indian Constitution. One of its clauses specifically addressed the preventive detention regime under Article 22 and sought to increase the safeguards therein. It is noteworthy that since then, no central government has implemented them. Furthermore, whenever the constitutionality of various preventive detention laws has been challenged before the Supreme Court, all such laws, including the NSA, have always been upheld. Even though the top court's actions in the *Aniket* verdict are praiseworthy, such rare interventions are certainly not enough in a country of nearly 1.5 billion people. Unless there is systematic reform, there will be many more like Aniket or Sonam Wangchuk who will continue to be preventively detained. ■

Prof. Rao is Vice Chancellor, NALSAR University of Law, Hyderabad; Goyal is Assistant Professor at the same university